



Notification Waiver Determination

FC Group Holdings Corporation & ors – Fluent Retail

Acquisition	FC Group Holdings Corporation (FC Group Holdings), Fluent Commerce MidCo Inc. (FC MidCo) and Fluent Commerce Holdings Inc. (FC HoldCo) applied for a notification waiver in respect of a US redomicile occurring in three stages: - the transfer of all the Fluent Retail Pty Ltd (Fluent Retail) shares to FC Group Holdings in exchange for equivalent classes of FC Group Holdings shares, following which the Fluent Retail shareholders will be the sole shareholders of FC Group Holdings, holding the same number and proportion of equivalent shares as they held in Fluent Retail immediately prior - the transfer of all the Fluent Retail shares from FC Group Holdings to its wholly-owned subsidiary, FC MidCo, by way of contribution of capital without further issue of shares - the transfer of all the Fluent Retail shares from FC MidCo to its wholly-owned subsidiary, FC HoldCo, by way of contribution of capital without further issue of shares, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	15 May 2026

Parties to the Acquisition	Fluent Retail operates in the retail technology and enterprise software industry, supplying cloud-based distributed order management system (OMS) software as a SaaS platform. Its solutions serve omnichannel retailers, e-commerce businesses, and grocery and fashion retailers, enabling real-time inventory visibility and order orchestration across multiple fulfillment locations. FC Group Holdings, FC MidCo and FC HoldCo are vehicles for the purpose of the Acquisition and do not engage in business or otherwise supply any goods or services.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material

	lessening of competition. In particular, there is no horizontal consolidation, removal of a competitor, or change to Fluent Retail's competitive position as a result of the Acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. The ACCC also considered the potential application of section 51ABD of the Act. The application states that on the facts of this matter, including the particular entities and structures involved, it was not clear that the Acquisition fell within that provision. Having regard to the particular circumstances, including the consequences of non-notification in reliance on the exemption if it was found not to apply, the ACCC considered it appropriate to make a determination on the basis that the acquisition provisions in the Act apply to the Acquisition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Woodward pursuant to a delegation under section 25(1) of the Act